Prince Teng's Pavilion

Wang Bo (A.D. 675)

By riverside stands high Prince Teng's Pavilion proud;
No more ringing bells punctuate dancers's refrain.
At dawn its painted beams bar the south-flying cloud;
At dusk its uprolled screens reveal western hills 'rain.
Leisurely clouds hang o'er still waters all day long;
Stars move from spring to autumn in a changeless sky.
Where is the prince who once enjoyed here wine and song?
Beyond the rails the silent river still rolls by.

LETTER OF MOTIVATION

Huabing Li

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107 years ago, Max Weber delivered a lecture in a Munich bookstore to a group of young students titled "Science as a Vocation". In it, he spoke somewhat pessimistically, saying, **"A scholarly career is a reckless gamble."** If things are indeed as he described, then this letter is like that of me, a crazy gambler, showcasing my purse, hoping for admission into a casino called EDLE. **Why pursue a PhD? Why choose the field of law & economics? Why EDLE?** Frankly, these questions have little to do with whether I can succeed in EDLE, because success can be based on the wrong motivations or may not even require a motivation at all, just as a chef may not love cooking, a painter may not enjoy colors, and a worker may not wish to labor. However, beyond a series of documents that prove I am highly likely to succeed in EDLE (such as my CV, research proposal, academic works, and letters of recommendation), **I wish to use this letter to discuss above questions that have little to do with success–Maybe that's more fascinating.**

I. Why PhD?

The Second Law of Thermodynamics dictates that everything in the universe is in a state of increasing entropy, that is, becoming more chaotic until it reaches its demise. However, the only one exception to this rule is life. The transition from disordered atoms to ordered life, a process that defies the Second Law of Thermodynamics, is so miraculous that it would be a betray to the wonder of life if one does not get somewhere and know something before its end. **Consequently, my initial motivation to pursue a PhD, used to come from the ambition to discover the truth, to witness the truth, and to leave my mark on the milestones of humanity's quest for the truth,** just like "I came, I saw, I conquered." To put it more honestly, it stems from wanting to counter life's inherent emptiness with academic success, to ensure that at life's twilight, I can reflect on my achievements and not feel my existence was in vain.

However, along with my growing understanding of academic paths, I gradually realized that even if I were to successfully obtain a PhD degree and proudly adopt the title "Dr. Li", I would merely be advancing the vast expanse of human knowledge by an insignificant margin, which could very well become completely obsolete in ten, twenty, or at most thirty years, and what I have spent my most precious youth exploring may be far from the truth. As aspiring to be a scholar necessitates "intellectual honesty", one must not delude oneself: **What if the "reckless gamble" doesn't pay off? Can I truly accept the prospect of spending an entire lifetime on "failed scholarly career"?** This is the first time I've wavered on whether or not to get a glamorous PhD.

Such thinking troubled me throughout my undergraduate, leaving me in deeply existential depression. But now, as you've seen my motivation letter explaining "why PhD", it indicates that I've managed to emerge from that turmoil—But how? **Perhaps you've also lost your way before—The best solution isn't to stay there and look around aimlessly for an exit because if it were that easy, you wouldn't have gotten lost in the first place; You should take steps to try, marking the wrong paths to avoid treading them again until you find the bright exit.** Even though I once doubted whether academic research could endow my life with meaning, my passion for academic study never ceased to drive me to explore.

During my undergraduate years, I voraciously absorbed knowledge by studying one major and three minors: trade and economics (major), law (minor), computer science (minor), and finance (minor), with a course load more than double that of my peers. On top of that, I demonstrated my academic passion quite early on by producing and submitting several working papers, as well as interning at research institutes and academic journals for a long time. **I never regarded these as annoying tasks I must complete, or stepping stones to further success** (such as successfully applying for a PhD in EDLE)**, but as sources of small yet satisfying joys in life, and as essential of life itself.** It's

amazing that when I'm fully engaged in learning something new and doing creative research, I never have to think about whether or not I'm okay with academic failure—Not because I'm convinced that I'm going to succeed, but because the process itself is interesting enough that the outcome doesn't matter as much.

It was such a gradual process of exploration and growth on the academic path that made me realize that the joy of academia does not necessarily stem from success, nor does it require the possession and control of truth. **Instead, it comes from the achievement in overcoming difficulties on the path to success, the delight as a newborn's marvel at the beautiful world, the peace from knowing oneself is on a path towards truth, and the consolation from seeing abstract truths take root in the real world and make tangible improvements, however minor.** The truth, much like the sun in Plato's Allegory of the Cave, cannot be owned by anyone, yet, as the slave who breaks free from the chains and steps out of the cave, the experience of basking in the sunlight of truth, feeling even the slightest bit of its brightness and warmth, is unprecedented new experiences in life. **If there is indeed a meaning to life, what else could it be if not such experiences?**

Holding such belief, I emerged from the paradox of "success or failure" with a resolve to dedicate several years for PhD to exploring a truly fascinating, challenging, yet potentially world-impacting issue. **Thus, rather than viewing a PhD as a medal for attaining truth, it's more fitting to consider it as a milestone on the endless journey of seeking truth; instead of seeing it as an achievement in life, it's more fitting to consider it as a way and choice of living one's life.**

II. Why Law & Economics?

An ensuing question is, why, within the vast array of modern academic disciplines, have I chosen to pursue a PhD in law & economics to find joy in the pursuit of truth? You might recall the metaphor of being lost mentioned earlier. The first part, "to take action rather than to stay there" indeed helped me grasp the meaning of pursuing a Phd degree. The choice of law & economics, on the other hand, comes directly from the latter half of that metaphor: My undergraduate experience of studying both economics and law made me realize that the separation of these two disciplines does not facilitate the quest for truth. **It was when both the traditional study of economics and law seemed to be overgrown with thorns that a third path to the light appeared: that is law & economics.**

Economics, perhaps, is one of the social science disciplines that is most closely related and similar to the natural sciences. A typical economic study starts by defining the research problem, proposes several hypotheses, and employs scientific tools (such as model deduction and empirical analysis) for validation and ensuring of the robustness. Such methodology is as enchanting as truth itself, for it offers unparalleled rigor and credibility. **However, it sometimes resembles a mathematical or statistical game, leading economists to increasingly focus on whether the hypotheses are novel, the tools sophisticated, and the conclusions solid, while overlooking whether overly narrow definitions, overly stringent assumptions, and overly ideal models might detach academia from the real world.** From a utilitarian perspective, regardless of how close to the truth such research that completely departs from human society and even the boundaries of imagination may be, what value does it hold?

When it comes to value, legal scholars seem to be brimming with confidence: **Most of them see their role as serving the real world, hoping to solve societal issues and even change the world through academic research.** However, a significant portion of them believe that truth lies not in proving but in arguing. **Academic research, to some of them, is not about seeking truth but rather a placebo that reinforces their belief in their own stance as the truth.** What's more alarming is that a small minority of legal scholars have ventured down the path of seeking truth with outdated or even flawed methodologies, which often leads not to the discovery of truth but to the propagation of errors, resulting in greater calamities.

It becomes apparent that some of the issues present in traditional economics and law studies reflect the drawbacks of modern disciplines becoming insular: **Academic specialization can indeed enhance efficiency and economies of scale but can also hinder the pursuit of truth, which should not be insular and cut off. Only through breaking down barriers and fostering communication and interaction can the forces seeking truth be fully integrated, benefiting the development and innovation of academia.** It was with this realization that I decided to combine my knowledge in both economics and law, supplemented with insights from computer science and finance, making law & economics my sail to the truth.

I arrived at the above conclusions around my third year of undergraduate study. **Subsequently, I embarked on my exploration of law & economics, aspiring to empower legal studies' concern and acuity for the real world with the scientific analytical methods and rational thinking patterns of economics.** For instance, self-help, an action considered marginal, primitive, and risky from the traditional legal perspective, is widely present in real life due to its efficiency and lower transaction costs. **How to avoid broadly criticizing self-help and instead analytically assess its role and impact in real society and judicial decisions?** The research I co-authored with three other students, "Tolerance in Prudence: A Dual-Examination of Legislation and Justice of Self-Help Based on AI Assisted Adjudication and Interdisciplinary Perspective", a hundred-plus page study awarded the 1st prize in the "Innovation Cup" academic work competition, **provides a relatively clear conclusion based on economic tools like AI adjudication, cost-benefit analysis, and questionnaire survey: "While self-help has its flaws, its advantages cannot be overlooked. The strictness of legislation and the leniency of justice can coexist and promote each other." This research also laid a preliminary foundation for the topic of my doctoral thesis.**

Another example is my undergraduate thesis in law, "From 'Light Crime But Severe Penalty' to 'Punishment Fits Crime': An Empirical Study on Embezzlement and Bribery Crime in China", which addressed a question debated for decades in the Chinese legal community: Does implementing the reform of balancing crime and punishment work in a country with a tradition of harsh penalties like China? Could it lead to a decrease in the deterrence of crime? **Purely legal-theoretical discussions, without in-depth analysis of judicial practice, tend to be superficial. In my paper, by web-scraping more than 70,000 judicial documents on embezzlement and bribery crime across China in 20 years, I constructed a novel panel database. And using the generalized difference-in-differences model, I identified and evaluated the effects of a key reform towards balancing crime and punishment, proving that such reforms are feasible in China, thus providing new evidence for a long-standing issue that traditional legal studies found tricky.** This thesis not only received good grade but was also accepted for presentation at the mid-term conference of this year's EMLE program, allowing me to showcase my work alongside many famous scholars in the field of law & economics. **The reason I was able to make marginal contribution to the tough issue was not mainly due to my own strength, but because the tool of law & economics was sharp and effective.**

Even though these works may still seem immature, I cherish them immensely because they bear witness to my growth and pursuit of truth. There are many more similar academic explorations, which are not suitable to be listed here in detail, but you can refer to my other application materials. **Without a doubt, it is these proactive explorations into law & economics that have deepened my fascination with the vibrant academic allure of law & economics and reinforced my belief that "only through exchange and interaction can gains be made."**

III. WHY EDLE?

As mentioned, I firmly believe that "only through exchange and interaction can gains be made", and such exchange and interaction should not be confined to disciplines alone but should also extend across universities and among scholars. To further enhance my academic capabilities and affinity in the field of law & economics, and to fully embrace the best practices from academic exchanges across countries and universities, **I participated in the 2023-2024 EMLE program under the full scholarship**

of the European Union's Erasmus Mundus programme, continuing my exploration of law & economics at the University of Hamburg, Ghent University, Erasmus University Rotterdam (for the mid-term conference), and Pompeu Fabra University.

During my past four months in the EMLE program, I experienced the joy of researching law & economics like never before. Unlike my self-directed exploration of law & economics during my undergraduate studies, **in EMLE, I received systematic training on the concepts and methodologies of law & economics, deeply integrating its methods into my thinking. Outside of the courses, I engaged in discussions with professors on many cutting-edge issues in law & economics, establishing strong academic connections.** For instance, the research on self-help mentioned earlier was identified as highly suitable for further development using non-cooperative dynamic game theory, transaction cost theory, and legal evolution theory, and for validation with more sophisticated empirical tools, which became the doctoral thesis proposal for EDLE; The study on balancing crime and punishment was also further deepened under the inspiration of Prof. Dr. Roee Sarel, utilizing the latest advancements in Becker's crime model. In addition, I exchanged thoughts and visions about the complex world with classmates from all over the world, forming deep friendships. **These new explorations and achievements made me appreciate the strength of European law & economics education and research, and I am willing to embark on a new journey in the extended and advanced version of the EMLE program: EDLE, to continue my adventure in law & economics.**

Moreover, another appealing advantage of the EDLE program is that it is not exclusively taught and supervised by the law faculty but also incorporates strengths from the economics department (such as the courses available in the economics department at the University of Bologna during the first semester), which represents a valuable resource advantage for me, with a major in economics and a minor in law. Although there are some other universities offering law & economics PhD, such arrangement like EDLE is still rare. **I plan to enroll in additional advanced economics courses (at least advanced microeconomics, advanced econometrics, and advanced statistics, etc.) during my first year in Bologna, which will enable me to not only apply the methods of law & economics to my research topics when I move on to Hamburg, Rotterdam, and my home university but also to attempt making marginal contributions to the development of the methodology in law & economics.**

Finally, just as my choice of the EMLE program was driven by a firm belief in the idea that "progress is created through exchange and communication," **I equally believe that the mobility scheme of the EDLE program will maximize my creativity and endow my doctoral thesis with a broader transnational and cross-cultural perspective. I intend to fully utilize the various academic resources provided by EDLE (such as the summer school and economic labs in Hamburg, workshops and seminars in Rotterdam, conferences and presentations across Europe, etc.), continuously contributing new academic achievements and lending my efforts to the flourishing development of law & economics in Europe.** Of course, the generous scholarship offered by the EDLE program will also enable me to devote myself entirely to pure academic research.

IV. Epilogue

Perhaps now is the right moment to bring this letter of motivation to a close, as all things must inevitably come to an end. The question I raised at the outset of this letter, "What if the 'reckless gamble' doesn't pay off? Can I truly accept the prospect of spending an entire lifetime on a 'failed scholarly career'?" now seems to have its answer: **As my life draws to a close, I will have no regrets about devoting the most precious years of my youth to the beautiful nations of Europe, where sailing on the winds of law & economics combining the rationality and precision of economics with the reflective and compassionate spirit of law, I am journeying towards shores that hold truths truly beneficial to society. My presence will fade, but the silent river still rolls by.**